Brazoria County District Court

Cause No. 2025-CV-0040

John Buckley, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 6, 2025
Plaintiff's counsel:	Bobby Berg, Morris & Miller LLP

PARTIES

Plaintiff John Buckley is an individual residing in Texas who was injured in a motor vehicle collision in Katy. Defendant is an automobile insurance carrier authorized to transact insurance business in the State of Texas, which issued the policy of uninsured/underinsured motorist coverage under which Plainitff now seeks benefits.

FACTS

On May 19, 2024, Plaintiff was lawfully parked in a designated space in a commercial parking lot in Katy when a vehicle operated by an insured of Defendant backed out of an adjacent space without yielding and struck the driver's side of Plaintiff's vehicle. The operator failed to check mirrors or blind spots and did not sound a horn or otherwise warn Plaintiff before impact. The collision was reported to Defendant promptly, and Plaintiff provided all information requested regarding the loss.

NEGLIGENCE

The at-fault operator owed a duty to exercise ordinary care when backing a motor vehicle, including keeping a proper lookout and yielding to vehicles in the travel lane. The operator breached that duty by backing without adequate observation, and that breach was the proximate cause of the collision and of Plaintiff's injuries. Defendant, as the insurer responsible for coverage under the applicable policy, is obligated to pay damages owed by its insured and to handle the claim in good faith under the Texas Insurance Code and the Texas Deceptive Trade Practices Act.

DAMAGES

As a direct result of the collision, Plaintiff suffered a lumbar back strain requiring medical evaluation, physical therapy, prescribed medication, and restricted activity. Plaintiff has incurred medical expenses, lost wages, and loss of enjoyment of life, and will likely incur future care. Plaintiff demands payment of $69,000.00, together with pre-judgment and post-judgment interest, court costs, and all other relief to which Plaintiff may be entitled.